

23STCV28522 23STCV28522

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PLAINTIFF'S MOTION

TO CONTINUE TRIAL

Ex Parte Application filed on May 27, 2026.

MOVING PARTY: Plaintiff Elly-Joy Shalomé Kaushansky.

RESPONDING PARTY: Defendant Doron Shauly.

NOTICE: OK.

RELIEF REQUESTED: Plaintiff seeks an order continuing the July 20, 2026 trial date to July 20, 2027, resetting the Final Status Conference, and reopening and extending all expert and nonexpert discovery and related deadlines.

RULING: Granted in part.

BACKGROUND

This action was initially set for trial on May 20, 2025. On April 1, 2025, the Court granted Defendants' ex parte application to continue

trial to November 2025. On September 30, 2025, the Court granted Plaintiff's ex parte application to continue trial to July 20, 2026.

On May 27, 2026, Plaintiff filed an ex parte application and motion to continue trial and extend related deadlines. On May 29, 2026, the Court denied ex parte relief, deemed the ex parte application and supporting papers the moving papers for a motion to continue trial, specially set the motion for hearing on June 26, 2026, and set a shortened briefing schedule.

On June 4, 2026, Plaintiff filed an ex parte application to advance all discovery hearings before June 20, 2026. The Court denied ex parte relief. The Court stated that it would consider, at the June 26, 2026 hearing, any request relating to outstanding discovery, deposition scheduling, the reopening of discovery, and any asserted need for a trial continuance, to the extent supported by competent evidence. The Court further stated that nothing in its June 4, 2026 order reopened discovery, compelled discovery responses, compelled deposition attendance, extended any discovery deadline, or granted a trial continuance.

On June 15, 2026, Defendant Shauly filed an opposition to the motion. On June 22, 2026, Plaintiff filed a reply.

Several matters remain on calendar before trial. The motions for protective order brought by Defendant Shauly and by Defendant Alon West Hills, LLC are set for June 29, 2026. Plaintiff's motions to deem requests for admission admitted are set for July 9, 2026 (as to Defendants Alon Investments, LLC and Walter Florida) and July 14, 2026 (as to Defendant Iris Shapiro). Plaintiff's motion to compel verified responses to Form Interrogatories, General, Set One, from Defendants Florida and Alon Investments, LLC is set for July 10, 2026. Plaintiff's combined motion to compel verified discovery responses from Defendants Florida, Alon Investments, LLC, and Shapiro is set for July 13, 2026.

The Final Status Conference is set for July 10, 2026. Jury trial is set for July 20, 2026.

LEGAL STANDARD

"Continuances are granted only on an affirmative showing of good cause requiring a continuance." (In re Marriage of Falcone & Fyke

(2008) 164 Cal.App.4th 814, 823.) A trial court has broad discretion in deciding whether to grant a trial continuance. (Pham v. Nguyen (1997) 54 Cal.App.4th 11, 13-18.)

Although trial continuances are disfavored, each request must be considered on its own merits, and the court may grant a continuance only on an affirmative showing of good cause. (Cal. Rules of Court, rule 3.1332, subd. (c).) Circumstances that may indicate good cause include the unavailability of an essential witness, party, or trial counsel; substitution of trial counsel where required in the interests of justice; the addition of a new party; a party's excused inability to obtain essential evidence despite diligent efforts; and a significant, unanticipated change in the status of the case as a result of which the case is not ready for trial. (Cal. Rules of Court, rule 3.1332, subd. (c)(1)-(7).)

In ruling on a motion to continue trial, the court must consider all relevant facts and circumstances, including the proximity of trial, prior continuances or delay, the length of the continuance requested, alternatives, prejudice, preferential trial setting status, the Court's calendar, whether counsel is engaged in another trial, whether the parties have stipulated, the interests of justice, and any other relevant circumstance. (Cal. Rules of Court, rule 3.1332, subd. (d)(1)-(11).)

A continuance of trial does not reopen discovery. (Code Civ. Proc., § 2024.020, subd. (b).) The Court may permit discovery to be completed, or discovery motions to be heard, after the statutory cutoff only on motion and a showing of good cause. (Code Civ. Proc., § 2024.050, subd. (a).) In deciding whether to reopen discovery, the Court considers the necessity and reasons for the discovery, the moving party's diligence, prejudice, and the time elapsed between trial settings. (Code Civ. Proc., § 2024.050, subd. (b)(1)-(4).)

DISCUSSION

A. Good Cause

Plaintiff requests a minimum twelve-month continuance — from July 20, 2026 to July 20, 2027, or the first available date thereafter — together with an order extending and, to the extent necessary, reopening all related pretrial deadlines. Plaintiff contends the current schedule forces her toward trial before she can obtain and use “verified discovery responses, RFA

rulings, follow-up discovery, subpoena-related evidence, inspection evidence, medical-provider records, amendment-related proceedings, expert preparation, witness preparation, exhibit preparation, and a complete evidentiary record.” (Motion, p. 1.) She further contends good cause exists because “Defendants have manufactured the present timeline crisis by serving zero verified responses to Plaintiff’s March 13, 2026 written discovery.” (Motion, p. 2.)

Defendant Shauly opposes the continuance. He argues Plaintiff “has had ample time to conduct discovery and prepare this matter for trial,” has “failed to diligently move the case forward,” and seeks a “last-minute continuance without demonstrating good cause.” (Opp., p. 2.) He also argues a continuance would “substantially prejudice” him because he has prepared in reliance on the current trial date and related deadlines, and that “[m]ere lack of preparation or delay in pursuing discovery does not constitute good cause sufficient to continue trial.” (Opp., p. 2.)

Plaintiff replies that the “pending calendar proves unreadiness on its face,” because protective-order hearings are set for June 29, requests-for-admission hearings for July 9 and July 14, motion-to-compel hearings for July 10 and July 13, the Final Status Conference for July 10, and trial for July 20. (Reply, p. 5.) She argues that “[a] discovery ruling issued days before trial provides an order but withholds the time necessary to receive, review, test, enforce, and use the resulting evidence.” (Reply, p. 4.) And she maintains that Defendant Shauly’s opposition is “unsupported by any declaration, exhibit, verified discovery response, or other competent evidence.” (Reply, p. 4.)

Here, the Court finds good cause for a trial continuance under California Rules of Court, rule 3.1332, subdivision (c)(6). Plaintiff served the principal written discovery at issue on March 13, 2026, before the nonexpert discovery cutoff, and contends that verified responses were due in April 2026 but that no Defendant served them. (Kaushansky Decl., ¶¶ 6, 9; Supp. Kaushansky Decl., ¶ 7.) Defendant Shauly and Defendant Alon West Hills, LLC each then moved for a protective order, and Plaintiff in turn filed motions to deem requests for admission admitted and motions to compel verified discovery responses.

The pending discovery motions are now set immediately before trial: the protective-order motions on June 29, 2026; the motions to deem requests for admission admitted on July 9 and July 14, 2026; and the motions to

compel on July 10 and July 13, 2026. The Final Status Conference is set for July 10, 2026, and trial for July 20, 2026.

A meaningful Final Status Conference cannot be conducted on July 10 while a discovery motion is set for that same day and further discovery motions remain set for July 13 and July 14. Nor would the current schedule afford time for any order issued on June 29, July 9, July 10, July 13, or July 14 to be complied with and incorporated into trial preparation before July 20.

A continuance is therefore necessary to allow the pending discovery motions to be heard, to permit compliance with any discovery the Court expressly orders, and to allow the parties to prepare for trial on a complete pretrial record.

B. Additional Factors

In addition to good cause, the Court must weigh the factors bearing on a trial continuance. (Cal. Rules of Court, rule 3.1332, subd. (d)(1)-(11).)

Two factors disfavor the relief Plaintiff requests. Trial is less than one month away, and continuances grow more disfavored as trial nears. (Cal. Rules of Court, rule 3.1332, subd. (d)(1).) The action has already been continued twice, from May 20, 2025 to November 2025 and then to July 20, 2026. (Cal. Rules of Court, rule 3.1332, subd. (d)(2).)

Three factors favor a limited continuance and outweigh those concerns. No adequate alternative exists: the pending discovery motions are set on June 29, July 9, July 10, July 13, and July 14, 2026, leaving no interval before the July 20 trial in which they can be heard, complied with, and the resulting evidence used. (Cal. Rules of Court, rule 3.1332, subd. (d)(4).) Plaintiff would be prejudiced if forced to trial before that occurs, while Defendant Shauly identifies no concrete prejudice from a short continuance. (Cal. Rules of Court, rule 3.1332, subd. (d)(5).) And the interests of justice favor trial on a complete pretrial record. (Cal. Rules of Court, rule 3.1332, subd. (d)(10), (11).)

The remaining factors are neutral. The case has no preferential setting. (Cal. Rules of Court, rule 3.1332, subd. (d)(6).) No counsel is engaged in another trial. (Cal. Rules of Court, rule 3.1332, subd.

(d)(8).) And the parties have not stipulated. (Cal. Rules of Court, rule 3.1332, subd. (d)(9).)

The Court finds the additional factors weigh in favor of a continuance. (Cal. Rules of Court, rule 3.1332, subd. (d)(1)-(11).)

C. Discovery Deadlines

For the July 20, 2026 trial date, the thirtieth day before trial fell on Saturday, June 20, 2026, and the nonexpert discovery cutoff therefore ran to Monday, June 22, 2026. (Code Civ. Proc., §§ 2016.060, 2024.020, subd. (a).)

Except as otherwise provided, a continuance of the trial date does not reopen discovery. (Code Civ. Proc., § 2024.020, subd. (b).) On motion, the Court may grant leave to complete discovery or reopen discovery after a new trial date has been set. (Code Civ. Proc., § 2024.050, subd. (a).) In exercising its discretion, the Court considers the necessity for the discovery, the diligence of the party seeking it, the likelihood the requested relief will interfere with the trial calendar or prejudice another party, and the time elapsed between prior and current trial settings. (Id., subd. (b)(1)-(4).)

Plaintiff's June 4, 2026, ex parte application asked the Court to advance the pending discovery hearings before June 20, 2026 and to preserve or extend the discovery and discovery-motion deadlines as to those pending matters. (6/4/26 Ex Parte Application, pp. 2-4, 21.) The request to advance the hearings is now moot, as June 20th has passed. The Court denied ex parte relief at the time but stated it would take up the underlying discovery issues at this hearing on competent evidence. (6/4/26 Minute Order, pp. 1-2.) Having reviewed the evidence, the Court finds as follows.

First, the Court finds good cause under Code of Civil Procedure section 2024.050 for limited nonexpert discovery relief, based on Plaintiff's service of the March 13 and May 11, 2026 written discovery that is already at issue in the pending protective-order and discovery-enforcement motions, and the compressed pretrial calendar. The discovery motions presently set for June 29, July 9, July 10, July 13, and July 14, 2026 may be heard notwithstanding the nonexpert discovery and discovery-motion cutoffs, and any discovery they expressly order may be completed according to the deadlines set

in the resulting orders.

The Court notes, however, that Defendants' protective-order motions are set for June 29, 2026. Those motions may narrow, eliminate, or otherwise affect the relief requested in Plaintiff's motions to compel and motions to deem requests for admission admitted. Plaintiff's later discovery motions shall remain on calendar pending the Court's rulings on the protective-order motions, subject to further case-management orders.

Second, the Court finds Plaintiff has not established good cause to broadly reopen all discovery deadlines based on the continued trial date. In reply, Plaintiff identified fifteen categories of discovery and twenty written discovery sets she contends drew no verified responses. (Reply, Exs. A-C.) The Court has considered those materials.

The written discovery served March 13 and May 11, 2026, seventeen of the twenty sets in Plaintiff's chart, was served in time to be completed before the cutoff, and appears to be before the Court through the pending protective-order, compel, and deem-admitted motions. It is addressed by the relief above. (Reply, Ex. B.)

The remaining categories do not justify an across-the-board reset of nonexpert discovery/motion deadlines. Plaintiff identifies discovery served so close to or after the cutoff that it could not be completed within the current June 22, 2026 discovery period, and she offers no explanation for the delay. The three Form Interrogatory sets served June 17, 2026 are not due until July 21, the day after the current trial setting. (Reply, Ex. A, item 3.) The management-office inspection was demanded May 21, 2026, with compliance due after the current June 22 cutoff. (Ex. A, item 8.) And the complete native surveillance video was requested June 17, 2026 (Ex. A, item 9.) On this record the Court does not find Plaintiff diligent as to these later-served items, and that lack of diligence weighs against a broad reopening. (Code Civ. Proc., § 2024.050, subd. (b)(2).)

Other categories are not before the Court on any noticed discovery motion: the third-party subpoenas, which have not been served (Reply, Ex. A, item 7), the former-counsel-file subpoenas to Quantum Law Group, Morris, Deer, and Lazarus, as to which no motion is on file (items 5-6), the generally described medical-record requests (item 11), and the party and person-most-qualified depositions, none of which has been noticed (item 14).

The newly identified parties (item 15) are not a discovery matter, and adding them would require leave to amend, a pleading motion not before the Court.

The Court therefore declines to reopen nonexpert discovery beyond the discovery motions presently on calendar and any nonexpert discovery expressly ordered as a result of those motions. Any party seeking additional nonexpert discovery relief must proceed by separate noticed motion identifying the specific discovery sought and establishing good cause under Code of Civil Procedure section 2024.050, including the necessity and reasons for the discovery, the moving party's diligence and the reasons the discovery was not completed earlier, any prejudice or interference with the trial date, and the time elapsed between the prior and current trial settings.

Expert discovery has not yet closed. Plaintiff contends Defendants served expert designations while withholding verified responses to her March 13, 2026 written discovery, leaving her unable to prepare for expert depositions. Accordingly, expert discovery deadlines shall be governed by the continued trial date.

CONCLUSION

Plaintiff's motion is GRANTED in part. The July 20, 2026 trial date is VACATED. Trial is continued to August 16, 2027, at 8:30 a.m. in Department F-46. The July 10, 2026 Final Status Conference is VACATED. The Final Status Conference is continued to August 6, 2027, at 8:30 a.m. in Department F-46.

Plaintiff's request to advance all discovery hearings before June 20, 2026 is DENIED as moot.

Nonexpert discovery remains closed as of the June 22, 2026 nonexpert discovery cutoff, except as to the discovery motions presently set for June 29, July 9, July 10, July 13, and July 14, 2026, and any compliance expressly ordered as a result of those motions. Plaintiff's request to reopen nonexpert discovery generally, reset nonexpert discovery deadlines, or reset law-and-motion deadlines is DENIED WITHOUT PREJUDICE to a separate noticed motion showing good cause under Code of Civil Procedure section 2024.050 as to the specific discovery requested.

This ruling addresses Plaintiff's requests for relief made

in connection with the noticed motion to continue trial under California Rules of Court, rule 3.1332. The Court expresses no opinion in this ruling regarding Plaintiff's separate request for disability accommodations under California Rules of Court, rule 1.100. That request remains under administrative review and will be addressed separately in accordance with the applicable procedures governing requests for accommodation.

Expert discovery shall be governed by the deadlines calculated from the continued trial date.

Plaintiff's motion to continue trial, scheduled for August 7, 2026, is VACATED AS MOOT in light of this ruling.